Employee Termination Policy

Fair, documented, lawful, and respectful termination decision and administration

Policy owner	Human Resources
Status	Proposed revised draft pending management, HR, and legal approval
Proposed version	3.0
Review cycle	Annual or when law or operations change
Supersedes after approval	EmployeeTermination_Policy_v2.0.docx

Approval notice. This proposed revision preserves the intent of the approved source policy and adds controls commonly expected in a mature policy framework. It does not replace version 2.0 until formally approved. Applicable law and written employment terms prevail where they provide a higher standard or different mandatory requirement.

Objective

This policy establishes a fair and consistent framework for voluntary and involuntary termination, role elimination, end of fixed-term employment, job abandonment review, and separation following an employee's death. It protects dignity, business continuity, information, and legal compliance.

Scope

The policy applies to all employees. It must be read with the Employee Performance and Issue Escalation Policy, Employee Exit Policy, employment contract, delegation of authority, and applicable law. It does not create an automatic right to terminate or alter any statutory or contractual protection.

Principles

- Termination decisions must have a documented and lawful basis, appropriate authority, and Human Resources review.
- Employees will normally be informed of the material concern and given a reasonable opportunity to respond before an adverse decision, except where law permits and urgent circumstances require another approach.
- Similar cases should be handled consistently while accounting for relevant differences, mitigating circumstances, prior record, support, and proportionality.
- No termination may be based on discrimination, retaliation, protected leave, a good-faith report, requested accommodation, or another unlawful reason.
- Privacy will be protected and information shared only with those who need it for a legitimate purpose.

Roles and Approval

Role	Responsibilities
Manager	Raises the case, preserves evidence, avoids prejudgment, supports transition, and does not communicate a final decision before approval.
Human Resources	Classifies the case, checks process and consistency, coordinates employee communication, documents approval, and manages the exit.
Authorized management	Reviews the business and evidence basis and makes or approves the final decision under the authority matrix.
Information Technology, Administration, and Finance	Act only on the authorized separation plan for access, assets, records, pay, benefits, and security.

Types of Separation

- Voluntary resignation, governed primarily by the Employee Exit Policy.
- Termination for performance or capability after reasonable expectations, support, review, and escalation.
- Termination for misconduct after an appropriate fact-finding and disciplinary process.
- Role elimination, redundancy, restructuring, or business closure following required consultation, selection, notice, and payment rules.
- Expiry or non-renewal of a fixed-term arrangement in accordance with the written agreement and law.
- Job abandonment only after reasonable contact attempts, review of possible emergency or protected absence, and Human Resources approval.
- Death in service, handled sensitively with the employee's nominated contact or lawful representative and without describing the separation as misconduct or resignation.

Standard Process for Involuntary Termination

1. Intake and classification. The manager provides Human Resources with the concern, evidence, history, impact, and any urgent risk.
2. Fact-finding. An impartial person gathers relevant documents and accounts, tests conflicting information, and considers mitigating factors, accommodation, and comparable cases.
3. Notice of concern. The employee receives enough information to understand the concern, possible consequence, meeting arrangements, and how to submit a response.
4. Meeting and response. The employee may explain the circumstances and provide evidence. A reasonable support person or representative may attend where required by law or approved by Human Resources.
5. Decision and approval. The authorized decision-maker reviews the full record and selects a proportionate outcome. Human Resources confirms legal, contractual, and policy compliance.
6. Written outcome. The company communicates the decision, reasons at an appropriate level, effective date, notice or pay treatment, final settlement, property return, continuing obligations, and appeal route.
7. Exit administration. Access, assets, records, communications, final pay, benefits, and documents are completed under the Employee Exit Policy.

Urgent Risk and Suspension

Where continued access or attendance creates a credible safety, security, evidence, or business risk, the company may temporarily restrict duties or access or place the employee on suspension while reviewing facts. Such action is neutral, should be as brief as reasonably possible, should normally preserve pay unless law and written terms permit otherwise, and must be reviewed regularly.

Appeal

An employee may appeal an involuntary termination in writing to Human Resources within five working days of the written decision, or another period stated in that decision. Grounds may include new evidence, procedural unfairness, inconsistency, or disproportionate outcome. An impartial authorized reviewer will consider the appeal and confirm the final result in writing without unreasonable delay.

Final Pay, Property, and Benefits

Human Resources and Finance will provide an itemized Full and Final settlement and any required information about benefits, statutory payments, expenses, or leave treatment. Deductions require a lawful and documented basis. Company property must be returned, business records preserved, and access removed according to the approved separation plan.

Communication and Confidentiality

Termination meetings will be respectful, private, and attended only by necessary persons. Internal and external communications will share only operationally necessary and authorized information. References or employment verification will be provided only by the designated function.

Records and Review

Human Resources will retain the business basis, evidence, employee response, approvals, decision, appeal, and exit checklist securely under the retention schedule. This policy will be reviewed annually and after material legal or organizational change.

Reference Framework

These sources informed the proposed controls as non-binding benchmarks. They do not replace applicable law, employment contracts, or approved company policy.

- Acas Code of Practice on disciplinary and grievance procedures as a general fairness benchmark: https://www.acas.org.uk/acas-code-of-practice-on-disciplinary-and-grievance-procedures/html

Document History

Version	Status	Summary	Reviewer
1.0	Internal review	Original internal policy review	Management
2.0	Approved	Approved source policy version 2.0	Imran Khan
3.0	Draft	Revised policy draft	Pending